

25STCV00473 25STCV00473

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-07-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C516%2C07%2F21%2F2026

Source SHA-256: 72fc145aef31119f0dd6ec9ac42e9c5897e3f0669d7c98101c17538382170e35

Case Number: 25STCV00473 Hearing Date: July 21, 2026 Dept: 516

Hearing Date: July 21, 2026

Case Name: Bagler v. RBD California

Restaurants Limited

Case

No.: 25STCV00473

Matter: Motions to Quash Deposition Subpoena for Production
of Business Records

Moving

Party: Plaintiff Autumn Bagler

Responding Party: Defendant RBD California Restaurants
Limited

Tentative

Ruling: Plaintiff Autumn Bagler's

motion is granted in part and denied in part.

Plaintiff

Autumn Bagler ("Plaintiff") filed her action against RBD California Restaurants Limited ("RBD"), KFC Corporation ("KFC"), Gilberto Mendez ("Mendez"), and Does 1 through 20. Plaintiff's First Amended Complaint ("FAC") alleges 11 causes of action for: (1) disability discrimination in violation of the Fair Employment and Housing Act ("FEHA"); (2) sex discrimination in violation of FEHA; (3) sexual harassment in violation of FEHA; (4) failure to engage in interactive

process in violation of FEHA; (5) failure to accommodate in violation of FEHA; (6) failure to prevent discrimination in violation of FEHA; (7) retaliation in violation of FEHA; (8) interference in violation of Pregnancy Disability Leave Law; (9) interference with rights under California Family Rights Act; (10) wrongful discharge in violation of public policy; and (11) defamation.

Plaintiff

moves to quash the subpoena for production of business records served on the Los Angeles County Department of Children and Family Services ("DCFS"). RBD opposes.

Legal Standard

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).)

Analysis

Preliminary

Matter

California

Rules of Court, rule 3.1345, requires that motions to quash the production of documents include a separate statement. (Cal. Rules of Court, rule 3.1345(a).)

"The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference." (Cal. Rules of Court, rule 3.1345 (c).)

Here, Plaintiff

submitted a separate statement, but RBD did not. RBD's failure to submit a separate statement is, by itself, grounds not to consider RBD's opposition. However, the Court will exercise its discretion and will consider the procedurally defective opposition.

Motion
to Quash

Plaintiff
moves to quash RBD's deposition subpoena served on DCFS on the basis that the records are statutorily protected, it infringes on Plaintiff's child's privacy, the requested documents are not relevant to the case, and the request is overbroad. Plaintiff also requests that the Court impose monetary sanctions against RBD and counsel of record in the amount of \$3,200.

RBD's
subpoena makes one categorical request for documents from DCFS for:

Any and all case
records, current judgments and court orders, statement of collections and distribution, declaration of support payment history showing all payments made or missed, National Medical Support Notice information on health insurance enrollment for minor child, detailed breakdown of how agency calculated support amount, and guideline calculations, records of communication between agency and other parent, copies, of other parent's financial records, including all paystubs, tax returns and child care expense receipts, other parent's full information, current address, social security number and employment information, proof of paternity such as birth certificate, and any existing custody orders.

(Gutierrez Decl., Ex. A (emphasis added).)

"Juvenile
delinquency case files and a living child's juvenile dependency case files may be obtained or inspected, and information from the file may be disclosed, only in accordance with sections 827, 827.12, and 828. The file may not be obtained or inspected by civil or criminal subpoena, and the information from the file may not be disclosed by testimony without a juvenile court order." (Cal. Rules of Court, rule 5.552(a).)

RBD argues

that California Welfare and Institutions Code section 827 is inapplicable because the documents sought are not juvenile delinquency case files or Plaintiff's juvenile dependency records. The Court agrees that the records requested do not fall under the protections of California Welfare and Institutions Code section 827.

Plaintiff argues

that California Welfare and Institutions Code section 10850 bars the production of the requested documents. The Court agrees that Welfare and Institutions Code section 10850 does apply. The Court also notes that RBD did not address the statute's application. Welfare and Institutions Code section 10850 protects the confidentiality of all applications and records relating to "any form of public social services." (Welf. & Inst. Code, § 10850, subd. (a).)

The California Constitution

protects individuals' right to privacy. (Cal. Const., Art. I, § 1.) "Protection of informational privacy is the provision's central concern." (Williams v. Superior Court (2017) 3 Cal.5th 531, 552.) "Invasion of a privacy interest is not a violation of the state constitutional right to privacy if the invasion is justified by a competing interest." (Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 38.) A statutory invasion of privacy requires a legally protected privacy interest, a reasonable expectation of privacy, and a serious invasion of that privacy interest. (Id. at pp. 35-37.)

Here, all three elements are met.

As established above, the records held by DCFS are protected documents. Also, the information sought regarding non-party Quinn McGee ("McGee"), assuming he is the father of Plaintiff's child, is entitled to privacy as well. RBD is asking for McGee's "current address, social security number and employment information, proof of paternity such as a birth certificate, and any existing custody orders." (Gutierrez Decl., Ex. A (emphasis added).) Plaintiff's child is also not a party to the action; thus, all requested information in relation to the child is also protected. Moreover, Plaintiff, Plaintiff's child, and McGee have a reasonable expectation of privacy that, if any records exist, their records held by DCFS will not be disclosed. Finally, the release of the documents is a serious invasion of privacy. RBD is asking the Court not to uphold the protections of Welfare and Institutions Code section 10850.

Thus, the production of the

requested documents is an invasion of privacy. The Court declines to address the remaining arguments because granting Plaintiff's motion to quash is warranted.

Sanctions

Plaintiff

requests that the Court impose monetary sanctions in the amount of \$3,200 against RBD and RBD's counsel of record pursuant to Code of Civil Procedure section 1987.2. The Court finds that sanctions are warranted, but the amount requested is not reasonable.

Thus, the Court will impose sanctions against RBD and counsel of record in the reduced amount of \$2,000.

Conclusion

Plaintiff

Autumn Bagler's motion to quash is granted.

Sanctions

are granted against Defendant RBD California Restaurants Limited and counsel of record in the reduced amount of \$2,000. RBD shall pay sanctions by August 20, 2026.